

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE ACCEPTANCE OF A DONATION FROM TALLGRASS ILS HOLDINGS, LLC FOR AFFORDABLE HOUSING PURPOSES AND AUTHORIZING THE MAYOR TO EXECUTE A DONATION AGREEMENT.”

WHEREAS, the Governing Body of the City of Cheyenne recognizes the need for affordable housing within the City of Cheyenne and the surrounding community;

WHEREAS, Tallgrass ILS Holdings, LLC has offered to donate Two Million Nine Hundred Thousand Dollars (\$2,900,000.00) to the City of Cheyenne to support affordable housing within the City;

WHEREAS, the donation is intended to fund, support, or facilitate costs associated with affordable housing projects within the City, including public infrastructure improvements, site preparation, construction-related costs, and other costs necessary to enable the construction or operation of affordable housing units, consistent with the terms of the Donation Agreement;

WHEREAS, if donation funds remain, the City may use the remaining funds for additional affordable housing projects within the City, provided such use is consistent with the Donation Agreement;

WHEREAS, the donation serves a valid public purpose by supporting the development, preservation, or operation of affordable housing within the City; and

WHEREAS, acceptance of the donation does not grant the donor control over project selection, project approvals, project management, expenditure of City funds, regulatory decisions, contract awards, or any preferential treatment or special benefit from the City.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the City hereby authorizes the acceptance of a donation from Tallgrass ILS Holdings, LLC in the amount of Two Million Nine Hundred Thousand Dollars (\$2,900,000.00) for affordable housing purposes, subject to the terms of the Donation Agreement; and

BE IT FURTHER RESOLVED that the Mayor is authorized to execute the Donation Agreement and any related documents necessary to effectuate the acceptance and administration of the donation, in a form approved by the City Attorney.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____,
2026.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk